HILCHOT SHABBAT

Mixtures, Utensils & Okhel from Okhel — Hilchot Shabbat

Given Thursday 23 April 2026 · מלאכת בורר — Siman 319: Seif 3

Siman: 319 (Borer — Selecting and Sorting on Shabbat) **Seifim Covered:** Seif Gimmel (in depth) + completing the utensil discussion from Seif Aleph **Topics:** Hand vs. utensil, forks/knives/peelers, ochel from ochel, selecting vs. sorting, defining a mixture, mitchloket on gidulei karka, silverware on Shabbat

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Recap: Seifim Aleph & Bet (Previous Class)

- **Three melachot of selection:** Zoreh (winnowing — wind), Borer (all other selection), Meraked (sieving)
- **Three conditions of Borer** (all three required):

1. Hand, not utensil
2. Ochel from psolet (wanted from unwanted)
3. Le'altar (immediate use)

- **Le'altar** = for the upcoming meal. Not about minutes — about mindset.
- **Birkat HaMazon rule (Chacham Ovadia):** Don't do borer before Birkat HaMazon for dessert after — benching ends the meal.
- **Borer must apply to a mixture** — no mixture, no borer.
- **If you violate borer:** be-mezid → food assur (can be rectified by putting back and re-selecting, per Chacham Ovadia); be-shogeg → permitted.

Completing the Utensil Discussion

The Three Levels of Utensils (From Seif Aleph)

Utensil Type	Example	Status
Specialized sieve (נפה וכברה)	Fine sieve, strainer	**Chayav d'oraita**
Non-specialized utensil (קנון ותמחוי)	Funnel, cone-shaped filter	**Assur mi-derabbanan**
Hand (ביד)	Your own hand	**Mutar**

Cutlery: Forks, Knives, Spoons

All poskim agree:

"An extension of your hand" — יד ארוכתא

- Forks, knives, spoons = yad arichta (extension of your hand)
- Permitted to use for hygiene or convenience — no one disagrees with this

MACHLOKET: What If the Utensil Actually Helps in the Selection?

Example: Congealed fat on top of soup → using a spoon to separate the fat from the soup.

Position 1 — Mishnah Berurah + Rav Moshe Feinstein:

- When cutlery **helps in the act of selection** → assur mi-derabbanan
- **Reasoning:** The reason Chachamim forbade kanon and tamchui was because they help with selection. A fork/spoon/knife that helps in selection should similarly be assur.
- The "yad arichta" heter only applies when it's purely an extension of the hand — not when it's performing a selection function.

Position 2 — Chacham Ovadia (and others):

- Even when cutlery helps in the act of selection → **mutar**
- **Reasoning:** If the Gemara meant any utensil that helps in selection is assur, why specify kanon and tamchui?
- Kanon and tamchui are utensils **sometimes/commonly used for selection** (e.g., selecting wheat) — that's why they're specifically assur
- Forks, knives, spoons are **not commonly used for selection** — they're cutlery for eating
- Therefore: **no din of borer with cutlery at all** — even when helping selection

Peelers — Chacham Ovadia's Extension

Chacham Ovadia's logic:

- A peeler is not a specialized selection utensil — it's essentially a special kind of knife
- Meikar ha-din → permitted, even on Shabbat
- **But:** המחמיר תבוא עליו ברכה — preferable to avoid if possible

Contemporary poskim:

- Many contemporary poskim **forbid** using a peeler on Shabbat
- **Rabbi Kada's position:** Those who use peelers have what to rely on — shouldn't object to them, but even Chacham Ovadia says better not to if you don't have to

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Seif ג (Gimmel): Ochel from Psolet When Both Are Food

The Shulchan Aruch's Text (Without the Rema)

היו לפניו שני מיני אוכלין מעורבים, בורר אחד מאחד ומניח לאכול מיד

- Two kinds of foods (both edible) mixed together
- Select one from the other, leave, eat immediately
- This is **verbatim from the Rambam**

What the Shulchan Aruch DOESN'T Say

- Just says "select one from the other" — doesn't specify **which direction**
- Could imply you're allowed to take either one out (wanted OR unwanted)
- **Major question:** When both items are good foods, does ochel/psolet still apply?

The Rema's Addition — The Game-Changer

בורר אחד מאחד ומניח **השני** לאכול מיד

- Rema adds the word **השני** ("the second one")
- Now it's clear: you take out the wanted, leave the unwanted behind
- The Rema is establishing that even with two edible foods, you must take what you want, not what you don't want

The Underlying Machloket

Position 1 — Kiryat Sefer, Maggid Mishneh, some Rishonim and Acharonim:

- When both are edible foods, the rule of "ochel from psolet" does NOT apply
- You have a mixture (so time + utensil conditions apply)
- But you can take either direction — wanted from unwanted OR unwanted from wanted

Position 2 — Halacha (Mishnah Berurah, all poskim Ashkenaz and Sefard):

- Even with two edible foods, you must take the wanted from the unwanted
- The unwanted is psolet relative to you at this moment

L'halacha: We follow Position 2 — always take the wanted from the unwanted. But know there are substantial poskim who disagree.

The Lesson About Shulchan Aruch vs. Rema

- The Rema can **substantively change** the meaning of the Shulchan Aruch
- If Rambam/Shulchan Aruch held it's mutar → the Rema completely reversed it
- Important to read the Shulchan Aruch first without the Rema to see what it actually says

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Major Question: Selecting vs. Sorting

The Pri Megadim's Question (300 Years Ago)

Scenario:

- 12:00 PM Shabbat
- Mixture of pistachios and peanuts — both edible
- I want pistachios at 5:00 PM
- My wife wants peanuts at 5:00 PM
- We'll sit down together at 5:00 to eat them
- **Can I separate them at 12:00?**

The Question:

- I don't want either NOW
- I don't NOT want either — I want them both, just not now
- Is this borer or not?

Does Borer Mean to SELECT or to SORT?

If borer = sorting → assur

- I'm sorting/distinguishing at 12:00 for 5:00 — not immediate use

If borer = selecting → mutar

- I haven't selected anything because I want both
- I've just separated them for later use
- No act of "choosing one over the other"

The Resolution

- **Pri Megadim:** Borer means SELECTING. Therefore permitted to sort for later.
- **Biur Halacha:** Borer means SORTING. Therefore even sorting for later is assur.
- **L'halacha:** Follow the Biur Halacha — borer IS sorting. Sorting for later is assur.

Important nafka mina: This comes up with silverware (see below).

Defining a Mixture (Ta'arovet)

The Rema's Rulings

שני מיני דגים מקרי שני מיני אוכלין

- Two kinds of fish (e.g., salmon + haddock) = two different foods = a mixture
- Borer applies — must select immediately, with hand

אף על פי שהחתיכות גדולות וכל אחת ניכרת בפני עצמה

- Even if the pieces are large and each one is identifiable → still a mixture
- Still requires the laws of borer

אבל כל שהוא מין אחד... לא מקרי ברירה

- One species (e.g., all salmon, big and small pieces) = NOT a mixture
- Can divide big from small freely — it's "division," not "selection"
- Example: giving big pieces to adults, small pieces to children → fine at any time

The Mishnah Berurah's Extensions

Considered a mixture (same species):

- Burnt vs. unburnt pieces of the same food
- Raw vs. cooked pieces of the same food

roasted meat vs. boiled meat — **בשר צלי ומבושל**

- Apples: sour vs. sweet → borer applies
- Different meats/poultry mixed together (big issue at big seudot)

Grey Areas — Judge for Yourself

These are unclear — depends on whether YOU consider it a mixture:

Scenario	Mixture?
Pink Lady apples vs. Gala apples	Unclear
Red apples vs. green apples	Unclear
Chicken thighs vs. chicken legs (same cooking)	Unclear

Rabbi Kada's guidance:

- If it looks like a mixture to you → follow laws of borer
- If it doesn't → don't need to
- **Safek d'oraita l'chumra** — when in doubt, be strict
- Essentially subjective: do YOU see this as a mixture or not?

Clearly NOT a Mixture

- Items clearly separated and discernible (not piled on each other)
- Silverware in separate compartments of a drawer
- Fruits clearly laid out in distinct sections

Does Borer Apply to Non-Gidulei Karka?

The Principle

- Some melachot only apply to **gidulei karka** (things that grow from the ground):
- Dash (threshing) — אין דש אלא בגידולי קרקע
- Me'amer (gathering)
- Applies to: vegetables, fruits, grains, and also animals/poultry (because they eat from the ground — loosely gidulei karka)
- Does NOT apply to fish (fish are not gidulei karka)

The Machloket for Borer

Position 1 — Terumat HaDeshen, Mordechai, most Rishonim:

- Borer applies to **everything**, not just gidulei karka
- Includes fish, utensils, clothing, anything mixed

Position 2 — Rabbi Akiva Eiger, others:

- Just like dash only applies to gidulei karka → borer too
- Would NOT apply to fish, clothes, utensils

The Rambam: Equivocal — says gidulei karka only for dash, but doesn't specify for borer. Could infer it applies to everything.

L'halacha: Borer applies to EVERYTHING. Fish bones, clothing, utensils — all subject to borer.

Practical Applications

Clothes in a Dark Drawer (Friday Night)

- Drawer with mixed socks, low light
- You look, investigate, pick out the pair you want
- **Since borer applies to everything → this is borer**
- Can't take out for the next morning

Clothes Clearly Visible

- Drawer lit up, blue/red/yellow/black socks clearly separate and visible
- **Not a mixture** → no problem

Removing Items on Top to Reach Below

Scenario:

- 5 dresses on pegs, the one you want is #4
- Take off #1, #2, #3 to reach #4

Is this taking psolet from ochel?

Resolution via Biur Halacha:

- Biur Halacha asked a technical question: why is taking psolet from ochel chayav if it seems like melacha she'eina tzricha legufa?
- Answer (Chacham Ben Tzion Abba Shaul): **That IS the melacha** — same as zore'a (planting takes months to yield, but that's the derekh of the melacha)
- From the Biur Halacha's discussion: when you're **removing something on top to reach what's underneath**, that's called **act of removing**, not borer
- **Therefore:** removing dresses #1, #2, #3 to reach #4 = mutar

Multiple Coats on a Peg (Shul Cloakroom)

- Five coats on one peg, yours is in the middle
- Take off the ones above to reach yours
- **Mutar** — same principle, act of removing, not selecting

Silverware on Shabbat — The Big Question

The Scenario

- Friday night — hosted 20 guests
- End of meal → 60+ pieces of mixed cutlery (forks, knives, spoons, teaspoons)
- Did the washing up → all in a big pile, washed
- Shabbat morning lunch → 20 more guests
- **Can I lay the table Friday night for Shabbat morning?**

The Kaf HaChayim's Strict Position

- Don't do this — it's a clear act of borer on a mixture for non-immediate use
- **Easy workaround:** When washing up, pile them as you wash:

- Take a fork → wash it → put on fork pile
- Take a knife → wash it → put on knife pile
- Your "immediate use" is washing it — not setting the table
- Once washed, they're sorted by the washing act itself

Chacham Ovadia's Lenient Position — Four Combined Sfeikot

Point 1: Machloket whether borer applies to non-gidulei karka at all

- Though halacha takes on it does → still a machloket

Point 2: Pri Megadim's svara — borer is selecting, not sorting

- Setting the table is sorting, not selecting (I don't want any one in particular)
- I want them all equally for later

Point 3: Ochel from ochel (two wanted things)

- Cutlery is all wanted — there's no "unwanted" cutlery
- Magen Avraham and Ben Ish Chai hold that ochel from ochel for the next meal is mutar even not le'altar:

  מסעודה לסעודה אחר שאכל סעודה מכין סעודה אחרת אף שהיא עדיין זמן מופלג

- Though l'halacha we don't take this on

Point 4: Each piece is individual and visible — arguably not a true "mixture"

Chacham Ovadia's Conclusion

- All four sfeikot together → **permitted** to lay the table Friday night for Shabbat morning from a washed mixture of cutlery
- But the Kaf HaChayim's workaround (sorting during washing) is simpler and avoids the question entirely

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The Biur Halacha's Technical Question (Lomdus)

The Question

- Borer of psolet from ochel is chayav de'oraita
- But isn't this **melacha she'eina tzricha legufa**? (I don't want the psolet — I'm just moving it out)

Chacham Ben Tzion Abba Shaul's Answer

- **That IS the melacha** — this is its very definition
- Parallel to zore'a: planting now for a harvest in 3 months — isn't that grama (indirect)?
- Answer: that's the derekh of the melacha — plant now, harvest later = the definition of zore'a
- So too borer: removing unwanted IS the melacha

The Yeshu'ot Ya'akov's Attempted Answer

- The melacha is really "making the wanted food better to eat" (fixing the ochel), not removing the psolet

- **Nafka mina:** When you have two wanted foods (both edible) and remove one, you're NOT improving the other → would be melacha she'eina tzricha legufa
- Biur Halacha uses this to establish: removing something on top to reach below = not borer

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Seif ג Final Rulings (Rema + Shulchan Aruch)

The Rema's Additional Halacha

ואפילו היו שני מינים ובורר משניהם ביחד הגדולות מתוך קטנות או איפכא שרי הואיל ואינו בורר מין אחד מתוך חברו

Permitted to take mixed items together:

- Mixture of pistachios and peanuts
- At 12:00 for guests at 5:00
- Take a big spoon — scoop out pistachios AND peanuts together
- Move half to another bowl
- **Not selecting/sorting by type → just dividing**
- Fine to do for later use

The Shulchan Aruch's Closing Line

ואם בירר והניח לאחר זמן אפילו לבו ביום כגון שבירר שחרית לאכול בין הערבים חייב

- Selecting in the morning to eat in the afternoon → **chayav de'oraita**
- Even two edible foods, even same day
- L'halacha: we do NOT follow the Ben Ish Chai/Magen Avraham leniency of "meal-to-meal" being considered le'altar

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Key Takeaways

1. **Cutlery** (fork, knife, spoon) = extension of hand. Chacham Ovadia: mutar even if helping selection. Rav Moshe: assur if helping selection.
2. **Peelers** — Chacham Ovadia meikar ha-din permits; many contemporary poskim forbid.
3. **Ochel from ochel** — halacha: must take wanted from unwanted even when both are edible. Rema added the word "הַשֵּׁנִי" to establish this.
4. **Borer means sorting, not just selecting** — sorting two wanted things for later is also assur.
5. **Mixture defined:** Different species, or same species with different qualities (cooked/raw, burnt/unburnt, sweet/sour). Grey areas → subjective, lean strict.
6. **Borer applies to everything**, not just gidulei karka. Includes clothes, utensils, fish bones.
7. **Removing items on top** to reach what's below = act of removal, not borer. Mutar.
8. **Silverware on Shabbat:** Easy solution — sort during washing. Chacham Ovadia: combined sfeikot permit sorting washed cutlery for next day's meal.

Preview: Next Class (Seif Daled)

- Bones of fish and meat — is there borer with parts of one unit (derech bri'ato)?
- Food mixed into liquid (solids in liquids, fly in soup)
- Borer with one unit of food

- Working through remaining seifim of Siman 319

Shabbat Shalom

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